MASTER SUBSCRIPTION AGREEMENT

FooBar Inc. and SaaSy Co. · Order Form FOO-2026-0418

This Master Subscription Agreement (the "Agreement") is entered into as of the Effective Date stated in the Order Form between FooBar Inc., a Delaware corporation ("FooBar"), and SaaSy Co. ("Customer").

1. DEFINITIONS

"Services" means FooBar's hosted data pipeline and warehouse platform described in the Order Form. "Customer Data" means data Customer or its users submit to the Services, including personal information of Customer's end users. "Fees" means the amounts payable under the Order Form.

2. SUBSCRIPTION

Subject to this Agreement, FooBar grants Customer a non-exclusive, non-transferable right to access and use the Services during the Subscription Term for Customer's internal business purposes.

3. FEES AND PAYMENT

Customer will pay the Fees annually in advance. The annual Fees for the initial Subscription Term are US $184,000. Fees are non-cancellable and non-refundable except as expressly stated in this Agreement.

4. CUSTOMER DATA AND SECURITY

Customer retains all rights in Customer Data. FooBar will maintain commercially reasonable administrative, physical and technical safeguards designed to protect Customer Data and will notify Customer of a Security Incident affecting Customer Data without undue delay.

5. CONFIDENTIALITY

Each party will protect the other party's Confidential Information with at least the care it uses for its own, and no less than reasonable care.

6. WARRANTIES

FooBar warrants that the Services will perform materially in accordance with the Documentation. Customer's exclusive remedy for breach of this warranty is re-performance of the non-conforming Services or, if FooBar cannot re-perform, termination of the affected Services.

7. INDEMNIFICATION

Customer will defend and indemnify FooBar against any claim arising from Customer Data or Customer's use of the Services. FooBar will defend Customer against third-party claims alleging that the Services infringe a United States patent, subject to Section 9.

8. TERM AND TERMINATION

The initial Subscription Term is three (3) years and renews automatically for successive one-year terms unless either party gives notice of non-renewal at least ninety (90) days before the end of the then-current term.

9. LIMITATION OF LIABILITY

9.1 EXCLUSION OF CERTAIN DAMAGES. IN NO EVENT WILL FOOBAR BE LIABLE TO CUSTOMER FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL OR PUNITIVE DAMAGES, OR FOR ANY LOSS OF PROFITS, REVENUE, BUSINESS, GOODWILL, OR LOSS OR CORRUPTION OF DATA, HOWEVER CAUSED, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

9.2 CAP. FOOBAR'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT, WHETHER IN CONTRACT, TORT OR OTHERWISE, WILL NOT EXCEED THE FEES ACTUALLY PAID BY CUSTOMER TO FOOBAR IN THE ONE (1) MONTH IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE CLAIM. THIS LIMITATION APPLIES TO ALL CLAIMS, INCLUDING CLAIMS ARISING FROM FOOBAR'S BREACH OF SECTION 4 (CUSTOMER DATA AND SECURITY) OR SECTION 5 (CONFIDENTIALITY) AND FOOBAR'S OBLIGATIONS UNDER SECTION 7.

9.3 CUSTOMER LIABILITY. NOTHING IN THIS SECTION 9 LIMITS CUSTOMER'S OBLIGATIONS UNDER SECTION 3 (FEES) OR SECTION 7 (INDEMNIFICATION), OR CUSTOMER'S LIABILITY FOR ANY BREACH OF THIS AGREEMENT.

10. GOVERNING LAW

This Agreement is governed by the laws of the State of Delaware, without regard to its conflict-of-laws rules.

11. GENERAL

This Agreement, together with each Order Form, is the entire agreement between the parties on its subject matter and supersedes all prior agreements. FooBar may update the Documentation and its online policies from time to time.

FooBar Inc.	SaaSy Co.
By: _____	By: _____
Name / Title	Name / Title